

4. This Act shall apply to Scotland with the substitution for "the Minister of Health" of "the Scottish Board of Health." Scotland.

5. This Act shall not extend to Ireland. Ireland.

6. This Act may be cited as the Bread Acts Amendment Act, 1922. Short title.

CHAPTER 29.

An Act to provide for the better protection of the public in relation to the sale of tea.

[20th July 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) A person shall not, either by himself or by any servant or agent, sell by retail any tea, whether contained in a package or not, otherwise than by net weight, and in ounces or pounds or in multiples of ounces or pounds. Conditions to be observed on sale of tea.

(2) A person shall not, either by himself or by any servant or agent, sell or have in his possession for sale by retail any tea packed ready for sale unless the package bears thereon or on a wrapper band or label affixed thereto a true statement of the net weight of the tea contained in the package.

(3) If any person acts in contravention of this section, he shall be liable on summary conviction to a fine not exceeding, in the case of a first offence five pounds, in the case of a second offence fifty pounds, and in the case of a third or subsequent offence one hundred pounds.

(4) This section shall not apply to any sale of less than two ounces of tea, which does not purport to be a sale of two ounces or more, or to any package which contains less than two ounces of tea, and which does not purport to contain two ounces or more.

Power of
inspector
to weigh
packages.

2.—(1) Where any person has in his possession for sale by retail any tea packed ready for sale, he shall, if so requested by any person duly authorised in that behalf by the local authority, weigh the contents of any package in the presence of that person, or permit that person himself to weigh the contents.

(2) If any person refuses to comply with a request made under this section, or in any other manner obstructs any person duly authorised as aforesaid in the execution of his powers and duties under this section, he shall be liable on summary conviction to a fine not exceeding five pounds.

Execution
of Act by
local autho-
rities.

3.—(1) For the purposes of this Act, the local authority shall be the local authority for the purposes of the Weights and Measures Acts, 1378 to 1919, and the expenses of a local authority under this Act shall be defrayed in the same manner as the expenses of a local authority under those Acts.

(2) It shall be lawful for a local authority to execute and enforce the provisions of this Act and, except in Scotland, to take proceedings for any offence against this Act.

Defence of
warranty.
38 & 39 Vict.
c. 63.
62 & 63 Vict.
c. 51.

4. The provisions of section twenty-five of the Sale of Food and Drugs Act, 1875, and of section twenty of the Sale of Food and Drugs Act, 1899, as set out with the appropriate modifications in the Schedule to this Act, are hereby incorporated with this Act and shall apply to proceedings for offences against this Act as they apply to proceedings for offences against the Sale of Food and Drugs Acts, 1875 to 1907.

Saving.

5. Nothing in this Act shall affect any right of proceeding against a person under any other enactment or at common law.

Short title
and applica-
tion.

6.—(1) This Act may be cited as the Sale of Tea Act, 1922.

(2) This Act shall not apply to Ireland.

(3) This Act shall come into operation on the first day of September, nineteen hundred and twenty-two.

SCHEDULE.

Section 4.

PROVISIONS OF SALE OF FOOD AND DRUGS ACTS APPLIED.

(1) If in any proceedings under this Act in respect of any package of tea the defendant proves that he purchased the tea in the package in which he sold it or had it in his possession for the purposes of sale and with a written warranty of the net weight of the tea contained in the package, and that he had no reason to believe, at the time when he sold it or had it in his possession for the purposes of sale, that the package did not comply with the provisions of this Act, he shall be entitled to be discharged from the prosecution.

(2) For the purposes of the foregoing provision, a statement on any package or any wrapper, band or label affixed thereto or delivered therewith shall be deemed to be a warranty.

(3) A warranty shall not be available as a defence to any proceedings under this Act unless the defendant has, within seven days after service of the summons, sent to the prosecutor a copy of such warranty with a written notice stating that he intends to rely on the warranty, and specifying the name and address of the person from whom he received it, and has also sent a like notice of his intention to such person.

(4) The person by whom such warranty is alleged to have been given shall be entitled to appear at the hearing and to give evidence, and the court may, if it thinks fit, adjourn the hearing to enable him to do so.

(5) A warranty given by a person resident outside the United Kingdom shall not be available as a defence to any proceeding under this Act, unless the defendant proves that he had taken reasonable steps to ascertain and did in fact believe in the accuracy of the statement contained in the warranty.

(6) Where the defendant is a servant of the person to whom a warranty was given, he shall, subject to the provisions hereof, be entitled to rely on the defence hereby allowed in the same way as his employer or master would have been entitled to do if he had been the defendant, provided that the servant further proves that he had no reason to believe that the package of tea did not comply with the provisions of this Act.

(7) Where the defendant in a prosecution under this Act has been discharged under the provisions of this schedule, any proceedings for giving the warranty relied on by the defendant in such prosecution may be taken as well before a court having jurisdiction in the place where the contravention of this Act took place, as before a court having jurisdiction in the place where the warranty was given.

(8) Every person who, in respect of any tea sold by him as principal or agent, gives to the purchaser a false warranty in writing, shall be liable on summary conviction, for a first offence, to a fine not exceeding twenty pounds, for a second offence to a fine not exceeding fifty pounds, and for any subsequent offence to a fine not exceeding one hundred pounds, unless he proves to the satisfaction of the court that when he gave the warranty he had reason to believe that the statements or descriptions contained therein were true.

CHAPTER 30.

An Act to amend section four of the Unemployment Insurance Act, 1922, so far as relates to the third special period mentioned in that Act.

[20th July 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendments
of s. 4 of
12 & 13
Geo. 5. c. 7.

1.—(1) The periods for which the Minister of Labour may, under section four of the Unemployment Insurance Act, 1922, authorise a person to receive benefit during the third special period shall be periods not exceeding in the aggregate twenty-two weeks instead of periods not exceeding in the aggregate fifteen weeks, and the prohibition imposed by subsection (5) of the said section four, on the receipt in the third special period of benefit for more than fifteen weeks in the aggregate, shall not apply in the case of benefit authorised by the Minister under that section as amended by this subsection.

(2) The period during which a person who has at any time received benefit under the said section four in the third special period for periods amounting in the aggregate to five weeks is under subsection (2) of that section not to be qualified for the receipt of benefit, shall be reduced from five weeks to one week :

Provided that, where by virtue of the said subsection any person is at the commencement of this Act disqualified for the receipt of benefit in the third special period, he shall continue to be so disqualified until the expiration of five weeks from the date on which he began to be so disqualified, or the expiration of one week from the commencement of this Act, whichever first happens.